



Police Negotiating Board Act 1980

1980 CHAPTER 10

An Act to provide for a Police Negotiating Board for the United Kingdom in place of the Police Council for the United Kingdom.

[20th March 1980]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The Police
Negotiating
Board for
the United
Kingdom.

1.—(1) There shall be a Board, to be known as the Police Negotiating Board for the United Kingdom, for the consideration by persons representing the interests of—

(a) the authorities who between them maintain the police forces in Great Britain and the Royal Ulster Constabulary, and

(b) the persons who are members of those police forces or of that Constabulary or are police cadets,

of questions relating to hours of duty, leave, pay and allowances, pensions or the issue, use and return of police clothing, personal equipment and accoutrements.

(2) The Chairman and any deputy chairman or chairmen of the Board shall be appointed by the Prime Minister.

(3) Subject to subsection (2), the Board shall be established in accordance with such arrangements made after consultations

between the Secretary of State and organisations representing the interests referred to in subsection (1) as appear to him to be satisfactory.

(4) The Secretary of State may—

(a) pay to the Chairman and to any deputy chairman or chairmen of the Board such fees as the Secretary of State may determine with the approval of the Minister for the Civil Service; and

(b) defray any expenses incurred by the Board;

and expenses incurred by the Secretary of State under paragraph (a) or (b), and any other administrative expenses incurred by him in connection with the Board, shall be defrayed out of money provided by Parliament.

(5) The Police Council for the United Kingdom shall cease to exist.

2.—(1) Before making, with respect to any of the matters mentioned in section 1(1) (other than pensions)—

Functions of the Board with respect to regulations.

(a) regulations under section 33 or 35 of the Police Act 1964;

1964 c. 48.

(b) regulations under section 26 or 27 of the Police (Scotland) Act 1967 (other than regulations relating to special constables); or

1967 c. 77.

(c) regulations under section 10(4) or 25 of the Police Act (Northern Ireland) 1970,

1970 c. 9 (N.I.).

the Secretary of State shall take into consideration any recommendation made by the Police Negotiating Board for the United Kingdom and shall furnish the Board with a draft of the regulations.

(2) The arrangements referred to in section 1(3) shall regulate the procedure for reaching agreement on a recommendation to be made by the Board for the purposes of subsection (1) of this section and shall include provision for arriving at such a recommendation by arbitration in such circumstances as may be determined by or under the arrangements.

(3) In section 1(1) of the Police Pensions Act 1976 for the reference to the Police Council for the United Kingdom there shall be substituted a reference to the Police Negotiating Board for the United Kingdom; and no regulations relating to pensions shall be made under section 35 of the Police Act 1964, section 27 of the Police (Scotland) Act 1967 or section 10(4) or 25 of the Police Act (Northern Ireland) 1970 except after consultation with the Board.

1976 c. 35.

1964 c. 48.
1967 c. 77.

(4) In section 46(3) of the Police Act 1964 and section 26(9) of the Police (Scotland) Act 1967 (which provide for consultation on certain matters with Police Advisory Boards or other bodies) for the words "other than regulations with respect to any of the matters mentioned in section 4(1) of the Police Act 1969" there shall be substituted the words "other than regulations with respect to any of the matters mentioned in section 1(1) of the Police Negotiating Board Act 1980".

Short title,
commence-
ment, repeals
and extent.

3.—(1) This Act may be cited as the Police Negotiating Board Act 1980.

(2) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(3) The following enactments are repealed—

1969 c. 63.

(a) section 4 of the Police Act 1969;

1970 c. 9 (N.I.).

(b) section 22 of the Police Act (Northern Ireland) 1970;

1976 c. 35.

(c) paragraph 7 of Schedule 2 to the Police Pensions Act 1976.

(4) This Act extends to Northern Ireland.